

HESSLER v. KAUTZ VINEYARDS

21CV45613

DEFENDANT'S MOTION TO COMPEL DISCOVERY

This is a personal injury action involving an alleged trip-and-fall at defendant's event facility. Before the Court is defendant's single, commingled motion to compel responses to Form Interrogatories, Special Interrogatories, and Requests for Production of Documents.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7, "all matters noticed for the Law & Motion calendar shall include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." The notice of motion herein fails to include the required warning regarding tentative rulings, necessitating a DENIAL of the motion without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

Moreover, while there is no substantive opposition to the motion, plaintiff's counsel advises that plaintiff has passed away and the family requires additional time to determine whether a personal representative will substitute into the case to pursue that portion of the action surviving plaintiff's passing. Plaintiff's counsel expects to remain involved with the case, and concedes the righteousness of defense counsel's request for fees. It seems to this Court that plaintiff's passing provides substantial justification for avoiding sanctions, but these matters ideally should be resolved between the parties in a timely manner.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further order is required.